

ATAR Unit 1 Examination, 2023

Question/Answer Booklet

POLITICS AND LAW

SUGGESTED ANSWER GUIDE

Time allowed for this paper

Reading time before commencing work:	Ten minutes
Working time for paper:	Two and a half hours

Structure of this paper

Section	Number of questions available	Number of questions to be answered	Suggested working time (minutes)	Marks available out of 80	Percentage of exam
Section One: Short answer	4	3	50	30	37.5%
Section Two: Source analysis	2	1	45	20	25%
Section Three: Essay	2	1	55	30	37.5%
					100

General Observations

- Students should not be spelling words listed in the question wrong e.g. Parliament
- Answer should begin with the language of the question – not a variation of this language
- Style your answer according to the question e.g. use of inverted commas; capital letters etc
- Evaluate the extent to which means – to a limited/moderate/strong extent etc.
- Distinguish: X is defined as....Y is defined as...The distinguishing feature between X and Y is....
- Quotes should be carefully selected. They must explain the term/outline the way etc. Not merely a quote which has the same word as the one that you are tasked with explaining. Quotes must use quotation marks: “ ”
- Revise use of capital letters
- Style your answer

Question 1**(10 marks)**

(a) What is meant by the ‘separation of powers doctrine’?

(2 marks)

Description	Marks
Outlines what is meant by the ‘separation of powers doctrine.’	2
Makes a general statement about the ‘separation of powers doctrine.’	1
Total	2
Answers could include: • An essential characteristic of a liberal democracy. French Philosopher Montesquieu came up with it, The separation of powers doctrine is the organisation of the powers of government in such a way that prevents the concentration of power in the hands of one leader or an elite group. Involves a clear system of checks and balances. • The separation of powers is based on the idea of dispersed power which provides a check and balance on one another. The legislative creates laws, the executive administer or execute the law and the judiciary resolves disputes by interpreting law in specific cases.	

(b) Distinguish between the ‘legislature’ and the ‘executive’ within the Australian parliamentary system. **(3 marks)**

Description	Marks
Distinguishes between the ‘legislature’ and ‘executive’ within the Australian parliamentary system.	3
Outlines what is meant by the ‘legislature’ and ‘executive’ within the Australian parliamentary system.	2
Makes a general statement about the ‘legislature’ and ‘executive’ within the Australian parliamentary system.	1
Total	3
Answers could include but not limited to: • The legislature refers to the lawmaking body of a sovereign state. Section 1 of the Australian Constitution vests legislative power in a federal parliament that shall consist of the Queen and the House of Representatives and the Senate. • Executive power refers to the body responsible for administering the law within a sovereign state. Section 61 vests executive power in the Queen represented by the Governor-General who is to be advised by a Federal Executive Council (EXCO). • In reality, the executive consists of the Prime Minister (currently Scott Morrison) and the Cabinet made up of the key ministers of government. • Distinguishing feature between the two is that members of the executive are indirectly elected whereas legislature are directly elected.	

- (c) Discuss the 'division of powers' as it relates to the Australian legal and political system.
(5 marks)

Description	Marks
Discusses each of these types of power and includes relevant examples	5
Identifies how power is divided in Australian federalism. Outlines each of these types of power and includes relevant examples or Identifies how power is divided in Australian federalism. Outlines two of these types of power and includes relevant examples or Identifies how power is divided in Australian federalism. Outlines one of these types of power and identifies one/two other types and includes relevant examples in the outline. or Identifies how power is divided in Australian federalism. Discusses one of these types of powers and includes relevant examples	3-4
Identifies how power is divided in Australian legal and political system	1-2
Total	5
Answers could include: The division of power in Australia is: - the allocation of law-making powers to Commonwealth and the States determined at the time of federation - the constitution lists exclusive and concurrent powers and explains residual powers: - Exclusive powers: These are lawmaking powers that were given to the Commonwealth to make laws. These lawmaking powers are given to the Commonwealth to make laws for the 'peace, order and good government of Australia'. They are enumerated (listed one-by-one) under Section 52, 90, 114, 115 of the Constitution. Exclusive powers are ones that only the Commonwealth can make laws for, and the States cannot. These include areas of national concern such as immigration, defence and currency. - Concurrent powers: Lawmaking powers shared with the states. These are known as concurrent powers because both the Commonwealth and the States have the authority to legislate in these areas. These are found in Section 51 and areas are marriage, divorce and bankruptcy. However, it is important to acknowledge here that if States made a law that conflicted with Commonwealth's laws, S109 within the Constitution states that Commonwealth's laws will always override that of the states. - Residual powers: These lawmaking powers are not listed within the Australian constitution. At the time of federation, colonies wanted to retain some of their lawmaking powers and not completely give up their legislative authority to the Commonwealth. As such, they retained a set of lawmaking powers that each state can legislate based on. These areas of lawmaking include education, criminal laws and health.	

Question 2

(10 marks)

- (a) What is meant by the term 'constitutional monarchy' in relation to Australia's political and legal system? (2 marks)

Description	Marks
Outlines what is meant by the term 'constitutional monarchy.'	2
Makes a general statement about the term 'constitutional monarchy.'	1
Total	2
Answers could include: - A form of government in which the head of state is an inherited position with powers limited by unwritten conventions. - In Australia, the representative of the Monarch, the Governor-General, is bound by unwritten Westminster conventions. The Governor-General also possesses express, formal and reserve powers.	

- (b) Outline three principles of responsible government in Australia's political and legal system. (3 marks)

Description	Marks
Outlines three principles of responsible government	3
Outlines two principles of responsible government	2
Gives a general description of responsible government.	1
Total	3
Answers could include but are not limited to: - Refers to the governments responsibility to the voters. A democratically elected government must be answerable and accountable to the people through the Parliament (they are not directly elected by us so the Parliament must hold them to account between elections). - Ministers are drawn from within the government (s. 64) and they must maintain the confidence of the government - Ministers are responsible to parliament and therefore to the people – a minister can be called to explain in parliament his or her actions and those of the department and agencies under his or her control = ministerial accountability - Members of parliament have the opportunity to question ministers about their activities and the activities of their department - Minister must carry out their duties with integrity and propriety or resign - There are opportunities for public scrutiny of the law-making process so the public can hold the government accountable or its actions; the government must respond to concerns/answer questions where appropriate - If the government loses the support of the lower house it must resign	

(c) Explain **one** political issue that you studied as part of your investigation and discuss its impact on the Australian political landscape. (5 marks)

- Answers will depend on contemporary political issue. Students could write about ANY contemporary political issue.
- They could take from what is happening in the news at present (e.g. #blacklivesmatters or how the government is handling COVID-19/investigation into COVID's origins) to writing about their chosen investigation topic.
- Answers must address the question = must discuss impact the issue has had on AUS politics or law.

Note: Students should be watching the news every night. The Politics and Law course is grounded in not only theory but also knowledge of contemporary issues as well.

Question 3

(10 marks)

- (a) Explain what is meant by the term 'parliamentary sovereignty'. (2 marks)

Description	Marks
Clearly explains what is meant by the term 'parliamentary sovereignty'.	2
Makes a general statement about 'parliamentary sovereignty'.	1
Total	2
Answers could include information such as this: • The concept that the parliament is the representation of the sovereignty of the people. • Parliament should be subject to no authority other than the people themselves • Parliament have overarching power over lawmaking as it has been delegated to it by the people • In Australia this concept is taken to mean that parliament has the right to make, amend or repeal any law—within the limits of the Constitution. • Parliament cannot make a law that a future parliament cannot change and, in general, parliament takes priority over the executive and judicial arms of government.	

- (b) Distinguish between a democratic and non-democratic political and legal system. (3 marks)

Description	Marks
Distinguishes between a democratic and non-democratic political and legal system.	3
States the difference between a democratic and non-democratic political and legal system.	2
Makes a general statement concerning the difference between a democratic and/or non-democratic political and legal system.	1
Total	3
Answers could include: • A democratic political and legal system should include the following characteristics: ○ A political and legal system based upon the doctrine of the separation of powers with political and legal power defined by a constitution. ○ A representative government that reflects the will of the majority. ○ Elections that are free from government interference and allow for maximum participation from the public. ○ A legal system that is based on the rule of law and allows for accused parties to receive natural justice in legal proceedings. • A non-democratic political and legal system may take various forms (dictatorships, juntas, theocracies etc.) but all share similar characteristics. These may include: ○ One head of government/state with political power vested in one political party. ○ Sovereignty not possessed by the people; elections are not common, but if they do take place usually have little to no integrity. ○ Restriction of alternative views to the government. Open expression of contrary views is usually met with strict reprisals led by military and/or police involvement. ○ A legal system that is based on the 'rule of man'. Retrospective laws are common and trials often occur with predetermined outcomes. Show trials (kangaroo courts) are frequent.	

- (c) With reference to a non-democratic political and legal system you have studied, discuss **three** ways democracy is undermined. (5 marks)

Description	Marks
Discusses two ways democracy is undermined in a non-democratic political and legal system. Reference is made to a specific non-democratic political and legal system.	5
Outlines two ways democracy is undermined in a non-democratic political and legal system. Reference is made to a specific non-democratic political and legal system. or Discusses one way democracy is undermined in a non-democratic political and legal system. Reference is made to a specific non-democratic political and legal system.	3-4
States one or two ways democracy is undermined in a non-democratic political and legal system.	1-2
Total	5
Answers could include: The non-democratic country discussed will change based upon the candidate's choice and school context. Examples could include: - China, North Korea, Saudi Arabia, Russia. For China democracy can be undermined in the following ways: - China is a socialist one-party state with political power vested in the Communist Party of China (CPC). The General Secretary of the CPC automatically becomes President of China. Only the CPC is permitted by the Constitution and its power is not limited by the Constitution. - In 2018 the Constitution was amended to remove the two-term limit for the position of President, thus allowing Xi Jinping to remain President for life. In 2022 further constitutional changes saw Xi's political thought become the basis of the constitution's political ideology. - Whilst elections do occur for the National People's Congress (NPC), only CPC members (or other approved parties) can stand for election. The NPC only meets once a year and acts as a 'rubber stamp' to proposals by the President or State Council. - The rule of law is rarely upheld, as demonstrated through the partisan legal system used in China and Hong Kong. Despite receiving approval for a British based lawyer to represent him, pro-democracy advocate Jimmy Lai had his right to legal representation revoked by the Hong Kong government. Lai's lawyer had his visa revoked, meaning he could not represent Lai in his trial. This caused delays to the legal process, further infringing the right to a fair trial. - Free expression of political views is an important aspect of any democracy. This is limited in China through a lack of political parties and a lack of free speech and press. China's communication channels are controlled by the CPC, with censorship common. Protests are swiftly dealt with, as seen during protests in Hong Kong in 2019 and 2020. Political dissidents were apprehended and a wide-reaching national security law framework was passed allowing for further government crackdowns.	

Question 4

(10 marks)

(a) Explain what is meant by the term 'doctrine of precedent.'

(2 marks)

Description	Marks
Outlines what is meant by the term 'doctrine of precedent'.	2
Makes a general statement about the term 'doctrine of precedent'.	1
Total	2
Answers could include: - The doctrine of precedent refers to a judge made decision that provides an example for future cases of similar circumstances. This principle is based on the Latin translation <i>stare decisis</i>, which means 'to stand on what has been decided'. - When a precedent is set, it is binding to all lower courts in the same hierarchy and can be persuasive to higher courts in the same hierarchy, or to courts outside of the respective court hierarchy. - Precedent is established in the written reasons for a judge's decision (<i>ratio decidendi</i>).	

(b) Outline **three** rules of statutory interpretation.

(3 marks)

Description	Marks
Outlines three rules of statutory interpretation.	3
Outlines two rules of statutory interpretation.	2
Outlines one rules of statutory interpretation. or Makes a general statement about statutory interpretation.	1
Total	3
Answers could include: - The literal rule sees a judge interpreting an Act exactly as the wording of the Act is stated. A judge will assume that the parliament has clearly stated the intended purpose of a law in the wording of an Act. - The golden rule accounts for potential errors in a literal interpretation of an Act. Older pieces of legislation may result in unjust interpretations due to outdated terminology in an Act. An interpretation using the golden rule will enable a judge to interpret the wording of an Act with a contemporary context applied. - The purpose rule allows a judge to interpret the intended purpose of an Act when the literal or golden rule will fail to achieve a just outcome. A judge will consider what specific wrong parliament was intending to remedy when passing the Act. To identify the intended purpose of parliament Hansard may be referred to.	

- (c) Discuss the rules of evidence used within the Western Australian trial process. (5 marks)

Description	Marks
Discuss the rules of evidence used within the trial process.	5
Outlines two or three rules of evidence used within the trial process.	3-4
Makes a general statement about rules of evidence used in the trial process.	1-2
Total	5
Answers could include but not limited to:	
• Relevance: Evidence must be applicable to the case. It must bear relevance to establishing the act or inaction alleged and, in some cases, the intent to commit the act. All evidence presented must be able to be tested and relate to the matters of fact in contention. Irrelevant evidence is excluded. It has no value in finding the truth. • Hearsay: Witnesses can only give evidence on what they have witnessed themselves. What they saw, heard, etc. the evidence must be firsthand. • Opinion: Witnesses can't express their opinions. The exception is with 'expert' witnesses. • Circumstantial: Circumstances may allow a particular conclusion to be drawn by a reasonable person. • Other rules of evidence could include: Leading questions; illegally obtained evidence etc.	

Section Two: Source analysis

25% (20 Marks)

Question 5

Read **Source 1** and answer **all** of the question parts that follows.

Source 1**Unit 1: Democracy and the rule of law**

The following is an edited extract entitled, Energy relief bill to face contest in Parliament, Albanese confident it will be passed, written by Georgia Hitch and published online, on ABC News, on 12 December 2022.

Prime Minister Anthony Albanese is confident his government's energy relief package will pass parliament with the support of all major parties when it goes to a vote on Thursday, despite the Greens flagging they will oppose sections of the bill. Mr Albanese announced late last week that national cabinet had agreed to a package put forward by the government that would see price caps put in place on gas and coal, and bill relief for eligible households. The final hurdle for the legislation to enable the package is to pass federal parliament when it is recalled this Thursday.

Greens leader Adam Bandt yesterday vowed to fight the legislation if it also provided compensation to fossil fuel companies, and the Coalition has described the plan as a "monster in the making". Labor would need the support of either the Coalition or the Greens in the Senate to pass the legislation.

Despite the comments from both parties, the prime minister said he believes it will pass later this week, and would be "stunned" if the Coalition voted against it.

Mr Albanese said the government would make payments to coal producers if the cost of production was higher than the price cap of \$125 a tonne to make sure there are no disincentives for producers to continue to supply the market.

Greens leader Adam Bandt calls on the government to "rein in" gas and coal producers.

It is understood plans for the compensation will not be in the legislation, and instead will be organised by the states in collaboration with the federal government. "If the costs of production aren't higher than that then, of course, the supply will continue," he said. But he rejected reports it could mean up to \$500 million in Commonwealth assistance. Mr Albanese said he had spoken to Mr Bandt and Opposition Leader Peter Dutton about the plan and would continue to consult with them, but would not say if he was open to negotiating the package.

The Greens leader said the public should not have to pay to cover shortfalls from fossil fuel producers given the record profits they have been making given high export prices amid the war in Ukraine.

Mr Dutton rejected that the Coalition would be supporting higher power prices by not supporting the legislation. "The government is not providing any guarantee that you'll see a reduction in power prices or gas prices in what they're doing," he said.

Question 5

(20 marks)

(a) What is meant by an 'Act of Parliament'?

(2 marks)

Description	Marks
Outlines what is meant by an 'Act of Parliament.'	2
Makes a general statement about an 'Act of Parliament.'	1
Total	2
Answers could include: - A piece of legislation following its passage through both houses of parliament and being granted royal assent. - A bill becomes an Act which is also known as a statute or legislation.	

(b) With reference to **Source 1** explain, in your own words, **two** issues facing the passage of the government's energy bill. (4 marks)

Description	Marks
Identifies two issues facing the passage of the government's energy bill. Explains each reason in the candidate's own word, with direct reference to the source.	4
Identifies two issues facing the passage of the government's energy bill. Explains one reason and outlines the other reason. Answer is mostly in the candidate's own word, with some reference to the source.	3
Identifies two issues facing the passage of the government's energy bill. Or Identifies and explains, in candidate's own words, one issue facing the passage of the government's energy bill.	2
One or two reasons are cited verbatim from the source.	1
Total	4
Issues facing the passage of the government's energy bill could include: - The Greens have stated that they will 'oppose sections of the bill' if the legislation 'provides compensation to fossil fuel companies.' The government requires the support of either the Opposition or the Greens in the Senate to pass the legislation. - The government has spoken with the Opposition and to the Greens, but is unsure if they will be 'open to negotiating the package.'	

(c) Discuss **two** purposes of statute law.

(6 marks)

Description	Marks
Identifies two purposes of statute law. Discusses each of these purposes and includes relevant examples in the discussion.	5 - 6
Identifies two purposes of statute law. Outlines each of these purposes and includes relevant examples in the outline. Or Identifies one or two purposes of statute law and discusses only one of these purposes and includes relevant examples in the discussion.	3 - 4
Identifies a purpose of statute law and gives an example. Or Identifies what statute law is. Gives examples of different types of laws.	1 - 2
Total	6
Two purposes of statute law could include: • The government will seek to enact legislation to implement their mandate. Ideally, this is derived from policies approved by Australian voters. For example, legislation for a Voice to Parliament referendum. • Under s83 of the Constitution, money can only be drawn from the Treasury when appropriated by law. As such, the government must pass legislation to authorise its expenditure – particularly the annual budget. • The parliament can amend or repeal an existing statute to address changing circumstances (e.g. technology, community values, crises, etc.) • Courts interpret statutes and, in doing so, change their meaning. The parliament may respond to these changes by codifying or abrogating common law. For example, the Native Title Act (1993). • Constitutional decisions cannot be abrogated. Formal changes to wording of the Constitution be approved via referendum (s128), while changes to its meaning occur through High Court interpretations (s76) or referrals of power (s51xxxvii). • The parliament may delegate law-making power to a subordinate authority, allowing them to make regulations and ordinances. This is intended to improve efficiency and responsiveness. • The parliament monitors the use of delegated powers through the Senate Standing Committee on Regulations and Ordinances. The parliament may inquire into their operation, amend their authorising Acts or disallow them.	

(d) Discuss the different forms of Alternative Dispute Resolution (ADR). (8 marks)

Description	Marks
Discuss the different forms of Alternative Dispute Resolution in detail with examples	7-8
Discuss the different forms of Alternative Dispute Resolution with examples	5-6
Explains 3-4 types of Alternative Dispute Resolution with examples	3-4
Explains 1-2 types of Alternative Dispute Resolution in detail with examples	1-2
Total	8
Answers could include, but are not limited to: Alternative Dispute Resolution, or ADR, is a way of resolving legal disputes without going to court. Negotiation • Informal bargaining process • Takes place directly between the people in dispute, but can be assisted by others e.g. lawyers, advocates • People involved in the dispute communicate directly to try and reach an agreement (communication can be written or spoken) • Example: Neighbour; Commercial; Consumer disputes Mediation • Most commonly used form of ADR • Confidential process in which a neutral person (the mediator) helps people to negotiate with each other and resolve their dispute • Party-centered process – it is focused primarily upon the needs, rights and interests of the parties • Mediators don't impose a decision • Example disputes: Family; Neighbour; Work disputes Conciliation • Process in which the people in dispute try to reach an agreement with the assistance and advice of an impartial person (the conciliator) • The conciliator usually has some experience of the subject of the dispute and can advise the parties what their rights and obligations are • Discussions are confined to the subject matter of the dispute • Ultimately the outcome is up to the individuals involved • The conciliator does not impose a decision • Example disputes: Consumer disputes Arbitration • Formal process in which the people in dispute present their case to an independent third person (the arbitrator) • People in dispute are bound by the arbitrator's decision • Example disputes: Tenant v Landlord; industrial relations / union	

Question 6

Read **Source 2** and answer **all** parts of the question parts that follows.

Source 2

The following is an edited extract entitled Children's climate change case overturned on appeal as Federal Court dismisses government's 'duty of care' written by Michael Slezak & Penny Timms and published online, ABC News on, 15 March 2022.

Federal Environment Minister Sussan Ley has successfully argued she does not have a duty of care to protect young people from climate change when assessing fossil fuel projects.

The ruling of the full bench of the Federal Court today overturned an earlier win by a group of eight children, who brought a class action on behalf of all Australian children that temporarily established the new common-law duty of care.

Experts say the children are likely to appeal against the decision in the High Court, but in the meantime, the ruling removes the duty of care that was established by Justice Mordecai Bromberg.

The class action, led by teenager Anj Sharma, argued that the environment minister had a duty of care to protect young people from climate change, and that this needed to be a consideration in the approval process for projects that would produce greenhouse gas.

On Tuesday, all three Federal Court judges had different reasoning as to why the government's appeal should be allowed, and Justice Bromberg's ruling was overturned.

One reason was that allowing the "duty of care" ruling to stand would have required changes to government policy, with chief justice James Allsop saying that should be left to the government itself, not the courts.

Jacqueline Peel, a professor at Melbourne Law School and the director of research group Melbourne Climate Futures, said the decision could be seen as a setback for other people who want to pursue climate change action in court.

"This judgement really says, 'Look, it's not the role of the courts to make these decisions — it's the role of our governments'," she said.

Question 6

(20 marks)

- (a) What is meant by the term 'common law.' (2 marks)

Description	Marks
Outlines what is meant by the term 'common law'.	2
Makes a general statement about the term 'common law'. Or Gives an example of a 'common law'.	1
Total	2
Answers could include: - Common law is law made by the courts. It is made through the decisions of a judge when deciding on the outcome of a case. - Common law creates precedents for future similar legal cases to be decided upon. This principle (<i>stare decisis</i>) sees this precedent flow on to future similar cases. - The reasons for a decision (<i>ratio decidendi</i>) are written by a judge and form the basis of the common law. - Common law fills the gaps left by statute law, however the principle of parliamentary sovereignty means that common law is inferior to statute law.	

- (b) With reference to
- Source 2**
- , explain, in your own words,
- two**
- outcomes of the decision by the Federal Court. (4 marks)

Description	Marks
Identifies two outcomes of the decision by the Federal Court. Explains each outcome in the candidate's own words with direct reference to the source.	4
Identifies two outcomes of the decision by the Federal Court. Explains one outcome and outlines the other outcome. Answer is mostly in the candidate's own words with some reference to the source.	3
Identifies two outcomes of the decision by the Federal Court. Attempts to explain in the candidates own words.	2
One or two reasons are cited verbatim from the source.	1
Total	4
Two outcomes of the decision by the Federal Court could include: - One outcome outlines that the "<i>Federal Court today overturned an earlier win by a group of eight children, who brought a class action on behalf of all Australian children that temporarily established the new common-law duty of care.</i>" - Another outcome establishes that "<i>it's not the role of the courts to make these decisions — it's the role of our governments.</i>"	

- (c) 'Civil wrongs are corrected by remedies'. Discuss this statement by outlining the types of remedies available in civil matters. (6 marks)

Description	Marks
Discusses all civil remedies Refers to rich and detailed examples.	5-6
Identifies some of the civil remedies Some examples given.	3-4
Only identifies and explains one or two civil remedies.	1-2
Total	4
Answers could include but not limited to: Discussion of statement would include: - The purpose of civil remedies is to rectify a situation caused by the person who was found to be in the wrong Civil remedies include: - Damages (this is only one example that needs to be explained thoroughly) - Money granted to the plaintiff - Against the defendant - In satisfaction of claim by the plaintiff - Compensation for the infringement of their rights - Types of damages include: compensatory, punitive, nominal, contemptuous - Note: Compensatory damages is the most common remedy sought - Injunctions - Any court order making a person do or refrain from doing something - A court order can be either restrictive/prohibitive (orders a person to refrain from doing something) or mandatory (orders a person to do something). - Types of injunctions include: Interlocutory; perpetual - Specific Performance - To fulfil obligations - Requiring a party to carry out actions that fulfil the terms of a contract - Restitution - To return property lost - Rescission - Freeing a party from a contract where they may have been misled or pressured into entering a contract (duress)	

- (d) Evaluate the extent to which the pre-trial stage of criminal trials in Western Australia upholds the principle of natural justice. (8 marks)

Description	Marks
Identifies and discusses the pre-trial stage of criminal trials in Western Australia. Evaluates the extent to which natural justice is upheld by the pre-trial stage of criminal trials in Western Australia. Incorporates detailed relevant evidence in the evaluation.	7 - 8
Identifies and discusses the pre-trial stage of criminal trials in Western Australia. Attempts to evaluate the extent to which natural justice is upheld by the pre-trial stage of criminal trials in Western Australia. Incorporates some relevant evidence in the evaluation.	5 - 6
Identifies and discusses the pre-trial stage of criminal trials in Western Australia. Makes a statement regarding how natural justice is upheld by the pre-trial stage of criminal trials in Western Australia. There is no attempt to evaluate its significance.	3 - 4
Makes a general statement about the pre-trial stage of criminal trials in Western Australia.	1 - 2
Total	8
Answers could include but not limited to: Natural Justice - Principles including impartial adjudication; presumption of innocence; burden of proof; standard of proof; right to silence; rules of evidence • Purpose of criminal pre-trial procedure: ○ Assist police ○ Protect the rights of the accused ○ Provide rights to the police; people's names, addresses e.t.c. ○ Provide an opportunity for the accused to be released pending trial ○ Determine whether a trial should proceed ○ Allow accused to plead guilty or not guilty • The following should be evaluated as to the extent to which they uphold natural justice: • Directions hearing - Magistrate determines any legal issues that need to be decided upon. Timeline for pre-trial hearings determined • Hand-up brief - Given to the defendant and contains DPP's evidence against them • Committal mention - Defendant receives witness statements and exhibits. Defendant may choose to cross-examine the DPP's witnesses to clarify evidence (contested committal mention) • Committal hearing - DPP presents case to the magistrate, including written statements, prosecution evidence and interview transcripts for the magistrate to determine whether it is likely to succeed and achieve a prosecution (prima facie case) • Plea - If the defendant didn't enter their plea (guilty or not guilty) earlier they may do it during committal proceedings	

Section Three: Essay**37.5% (30 marks)****Marking guide to essay answers****Questions 7 – 10**

Description	Marks
Explains relevant terms and outlines parameters of discussion	
Explains all relevant terms and outlines parameters of discussion	5
Explains some of the terms and outlines parameters of discussion	4
Indicates what will be addressed in the discussion	3
Attempts to provide a focus for discussion	2
Makes a general statement concerning the topic / claim	1
Subtotal	5
Discussion of relevant issues including pertinent examples	
Discusses comprehensively relevant issues using a well-structured format & supportive examples in a cohesive, logical sequence and using relevant political and legal terminology	9-10
Discusses some relevant issues incorporating some examples in a cohesive, logical sequence and using relevant political and legal terminology	7-8
Limited discussion with limited examples in a logical sequence & some relevant political & legal terminology	5-6
Limited discussion of the issues with limited political and legal terminology	3-4
Makes a general statement concerning the topic	1-2
Subtotal	10
Evaluation / Assessment / Analysis	
Evaluates/Assesses/Analyses the claim using specific evidence which demonstrates a comprehensive understanding of the topic	7
Evaluates/Assesses/Analyses the claim using appropriate evidence which demonstrates an understanding of the topic	6
Evaluates/Assesses/Analyses the claim using some evidence which demonstrates some understanding of the topic	5
Constructs a relevant but weak evaluation / assessment / analysis	4
Constructs a weak evaluation / assessment / analysis	3
Limited evaluation / assessment / analysis	2
No relevant evaluation / assessment / analysis A statement only	1
Subtotal	7
Conclusion	
Draws together the argument linking evidence	3
Summarises the argument	2
Makes general / superficial statements	1
Subtotal	3
TOTAL	25

Question 7

(25 marks)

Evaluate the extent to which the United Kingdom and the United States played a significant role in shaping the structure of Australia's political and legal system.

Relevant terms and parameters of discussion:

- Australian political and legal system: including structure of government as outlined in Constitution; structure of Parliament; elections; design of federalism; structure of courts.
- Influences from political and legal systems of UK and USA.
- Other international influences from Canada, and Switzerland.

Issues including pertinent examples could include:

- Influences from UK:
 - Westminster system:
 - Ceremonial head of state with constitutional limitations on power-conventions.
 - Bicameral parliament.
 - Responsible parliamentary government; executive drawn from legislature
 - Collective and Individual Ministerial Responsibility (although seems to have weakened, e.g. Angus Taylor)
 - Constitutionalism.
 - Representative government.
 - Parliamentary opposition
 - Common law, doctrine of precedent, and court hierarchy; although British courts no longer part of Australian hierarchy.
- Influences from USA:
 - Federalism
 - Written constitution.
 - Senate with equal representation for states.
 - Constitutional court.
- Influences from Canada:
 - 'Washminster' hybrid (Westminster system, combined with US-style federalism)
- Influences from Switzerland:
- Democratic method of altering Constitution; proposed amendments must be approved by voters.

Unique aspects of Australia's system:

- A written constitution inspired by the US clashing with unwritten Westminster conventions.
- 1975 crisis due to a strong US style upper house with co-equal power to the lower house, except for money bills.
- Electoral systems: preferential voting and proportional representation different to First-Past-The Post used in UK and USA.
- Australian federalism has evolved so that power has centralised in the federal government, due to High Court decisions and vertical fiscal imbalance.
- Party discipline in parliament has evolved to be much stricter than in UK.

Evaluation:

- The extent to which the United Kingdom played a significant role in shaping the structure of Australia's political and legal system?
- The extent to which the United States played a significant role in shaping the structure of Australia's political and legal system?
- The extent to which other international influences played a role in shaping the structure of Australia's political and legal system?

Question 8

(30 marks)

Evaluate the extent to which the Commonwealth Parliament is able to effectively scrutinise proposed bills before they become Acts.

Relevant terms and parameters of discussion

- Role and structure of the legislature:
 - To pass, amend and repeal laws
 - Senate, HoR, G-G
- Bill is policy that is yet to pass the legislative process
- Appropriation bills:
 - Money spent by the executive government. These types of bills can only be initiated or amended in the House of Representatives (s.53; s.54)

Issues including pertinent examples could include:

- Ways which provide for careful scrutiny of a bill (strengths):
 - Carefully drafted
 - Notice of bill
 - Every MP receives a copy
 - Federation Chamber provides efficiency
 - Open government
 - Reading of the bill aloud and in full
 - Debate
 - Committee stage – outside consultation; expert advice
 - Majority vote required to pass
 - A bill must be passed by both houses
 - House – represents the will of the people/majority
 - Senate – represents minorities
 - Senate: powerful chamber; check on gov. power; absence of executive dominance; stronger debate function
 - A bill must receive broad support / bi-partisan support
 - Governor-General acts as a final check
 - May return bill with recommendations
- Ways which greatly reduce the careful scrutiny of a bill (weaknesses):
 - Executive dominance in the House
 - Sets the agenda – therefore most bills are gov. bills
 - Government controls debate function – and may use tactics to force through debate (gags; guillotines; flood-gating)
 - Gov never loses a vote on the floor of the House (exemption: Medevac)
 - Powerful Senate crossbench – may reduce legitimacy of gov majoritarian mandate
 - Case example: Lambie
 - Senate – malapportionment rejects the principle of ‘one vote, one value’
 - One senator’s vote can be worth more than another senator’s vote
 - Horse-trading
 - Due to ‘on voice narrative’ – unable to hold individual ministers responsible for bill

Evaluation/assessment/analysis

For full marks students must establish a clear argument outlining the ways in which a bill can be carefully scrutinized within the AUS parliament – and, in contrast, the ways which reduce/minimise scrutiny.

